

Tentative Rulings for September 15, 2026 Department PS1

**To request oral argument, you must notify Judicial Secretary
Carol Delfosse-Kidd at (760) 904-5722
and inform all other counsel no later than 4:30 p.m.**

This court follows California Rules of Court, Rule 3.1308 (a) (1) for tentative rulings (see Riverside Superior Court Local Rule 3316). Tentative Rulings for each law & motion matter are posted on the Internet by 3:00 p.m. on the court day immediately before the hearing at [Riverside Superior Court-Tentative Rulings](#). If you do not have Internet access, you may obtain the tentative ruling by telephone at (760) 904-5722.

To request oral argument, no later than 4:30 p.m. on the court day before the hearing you must (1) notify the judicial secretary for Department PS1 at (760) 904-5722 and (2) inform all other parties of the request and of their need to appear remotely, as stated below. If no request for oral argument is made by 4:30 p.m., the tentative ruling **will become the final ruling** on the matter effective the date of the hearing. **UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.**

COUNSEL AND SELF-REPRESENTED PARTIES ARE ENCOURAGED TO APPEAR AT ANY LAW AND MOTION DEPARTMENT TELEPHONICALLY WHEN REQUESTING ORAL ARGUMENTS.

For information and instructions on remote appearances via **ZOOM**, visit the court's website at [Riverside Superior Court-Remote Appearances](#)

You may also make a Telephonic Appearance: On the day of the hearing, call into one of the below listed phone numbers, and input the meeting number (followed by #):

- Call-in Numbers: 1-833-568-8864 (Toll Free), 1-669-254-5252, 1-669-216-1590, 1-551-285-1373 or 1-646-828-7666
- Meeting Number: **160 520 9376**

Please **MUTE** your phone until your case is called and it is your turn to speak. It is important to note that you must call fifteen (15) minutes prior to the scheduled hearing time to check in or there may be a delay in your case being heard.

Riverside Superior Court provides official court reporters for hearings on law and motion matters only for litigants who have been granted fee waivers and only upon their timely request. (See General Administrative Order No. 2021-19-1) Other parties desiring a record of the hearing must retain a reporter pro tempore.

1.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET CLOSE, LLC	DEMURRER ON 3RD AMENDED COMPLAINT OF AUDREY LITTLE BY OAKTREE FUNDING CORPORATION

Tentative Ruling: No tentative ruling. Hearing is moved to 9.18.26 at 1:30 p.m.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET CLOSE, LLC	MOTION TO STRIKE 3RD AMENDED COMPLAINT OF AUDREY LITTLE BY OAKTREE FUNDING CORPORATION

Tentative Ruling: No tentative ruling. Hearing is moved to 9.18.26 at 1:30 p.m.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET CLOSE, LLC	DEMURRER ON 3RD AMENDED COMPLAINT OF AUDREY LITTLE BY DEFENDANTS ROCKET CLOSE, LLC, ROCKET CLOSE, LLC (F/K/A AMROCK TITLE CALIFORNIA, INC.), AND ROCKET COMPANIES, INC.

Tentative Ruling: No tentative ruling. Hearing is moved to 9.18.26 at 1:30 p.m.

4.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET CLOSE, LLC	MOTION TO STRIKE 3RD AMENDED COMPLAINT OF AUDREY LITTLE BY DEFENDANTS ROCKET CLOSE, LLC, ROCKET CLOSE, LLC (F/K/A AMROCK TITLE CALIFORNIA, INC.), AND ROCKET COMPANIES, INC.

Tentative Ruling: No tentative ruling. Hearing is moved to 9.18.26 at 1:30 p.m.

5.

CASE #	CASE NAME	HEARING NAME
CVPS2508295	LITTLE VS ROCKET CLOSE, LLC	MOTION FOR RECONSIDERATION OF PLAINTIFF'S PROTECTIVE MOTION FOR RECONSIDERATION AND CLARIFICATION OF JULY 21, 2026 DISCOVERY ORDER PURSUANT TO CCP § 1008(A), OR ALTERNATIVELY RENEWED MOTION PURSUANT TO CCP § 1008(B)

Tentative Ruling: No tentative ruling. Hearing is moved to 9.18.26 at 1:30 p.m.

6.

CASE #	CASE NAME	HEARING NAME
CVPS2509844	CORTEZ VS CHAPMAN	MOTION FOR PROTECTIVE ORDER BY WILLIAM CHAPMAN

Tentative Ruling: CCP § 2025.420(b) provides that “for good cause shown,” the court may issue a protective order “to protect any party ... from unwarranted annoyance, embarrassment, or oppression, or undue burden and expense.” The burden is on the moving party to establish “good cause” for the requested relief. (*See Emerson Elec. Co. v. Superior Court* (1976) 16 Cal.4th 1101, 1110; *Nativi v. Deutsche Bank Nat’l Trust Co.* (2014) 223 Cal.App.4th 261, 318.)

Based on the deposition transcript, Chapman is 88 years old, hard of hearing, and uses hearing aids. (William Chapman’s Deposition Transcript, 7:14-19; 22:22-24.) This was also his first deposition. (*Id.* at 6:17-21.) The deposition was conducted via Zoom. (*Id.* at 6:22-23.) While closed captioning was provided to assist Chapman in answering questions, Chapman had a hard time hearing what was said, had a difficult time keeping up with the closed captioning, and appeared confused by the objections. (*Id.* at 6:9-20, 9:10-17; 12:2-20; 13:3-22; 15:7-20; 17:6-20; 18:4-10; 20:7-24; 23:17-25; 24:1.) Plaintiff’s counsel struggled to get Chapman to respond to fairly basic questions regarding receiving the complaint, a voicemail to Plaintiff, and the identity of the other defendants. (*Id.*) Using Zoom can be difficult for those without any hearing issues, due to background noises from multiple users and lag time. Holding a deposition in person for someone who is hard of hearing and has hearing aids appears reasonable. Based on this evidence, there is good cause to grant the request that Chapman’s deposition go forward in person with the benefit of closed captioning to prevent annoyance and embarrassment to Chapman.

Plaintiff argues that Chapman failed to sufficiently meet and confer regarding this matter. CCP § 2025.420(a) requires the parties to meet and confer before a motion for protective order is filed. However, based on the deposition transcript and the emails sent, Chapman’s counsel attempted to discuss with Plaintiff’s counsel the need for an alternative method to conduct Chapman’s deposition, including the request that Plaintiff’s counsel agreed to hold the deposition in person instead of via zoom. (William Chapman’s Deposition Transcript, 21:1-13; 24:13-25; 26:3-17; 27:7-14; Exhibits H and J to Charmaine V. Jackson’s Declaration.) These communications are sufficient to meet Chapman’s meet and confer requirement.

Plaintiff’s counsel also takes issue with the fact that Chapman’s counsel unilaterally determined that Chapman’s deposition should end during his first session. However, she points to no authority that this fact has any impact on Chapman’s motion for protective order.

Plaintiff seeks sanctions under CCP § 2025.420(h). Chapman does not seek sanctions. Under CCP § 2025.420(h), the court shall impose monetary sanctions against any party who unsuccessfully makes or opposes a motion for protective order, unless it finds that imposing sanctions would be unjust or the party acted with substantial justification. Sanctions are not proper under this code section because Plaintiffs were not successful in their opposition. They also seek sanctions under CCP § 2023.030 for misuse of discovery. CCP § 2023.030(a) gives the court discretion to impose sanctions for the misuse of the discovery process. While the Court ordered Chapman’s deposition, due to Chapman’s struggles at deposition, Chapman and Chapman’s counsel’s conduct are not improper. Counsel attempted to resolve this issue with Plaintiffs.

Defendant Chapman's Motion for a Protective Order GRANTED.

The deposition of William Chapman will proceed in person, with the assistance of closed captioning and Mr. Chapman will use functioning hearing aids.

Plaintiff's request for sanctions DENIED.

Case Management Conference continued to 11.20.26. Counsel ordered to file new and updated Case Management Statements regarding status of Discovery/ Alternative Dispute Resolution/ compliance of CRC 3.724 & LR 3218. Failure to do so will result in sanctions. Updated Case Management Statements must be filed no later than 10 days before the Case Management Conference. All Case Management Statements shall be submitted on pleading paper with a brief summary of the status of the case and any specified issues that need to be addressed by the court. Do not use Judicial Counsel form CM-110.

Additionally, the court is ordering that prior to filing any further discovery motions, the party must request an informal discovery conference with the court to discuss the discovery issues. No future discovery motions shall be heard without an IDC conducted first.

7.

CASE #	CASE NAME	HEARING NAME
CVPS2509844	CORTEZ VS CHAPMAN	PLAINTIFF WENDY ALEJANDRA CORTEZ'S MOTION FOR TERMINATING SANCTIONS, OR IN THE ALTERNATIVE, ISSUE AND EVIDENTIARY SANCTIONS, AND REQUEST FOR MONETARY SANCTIONS

Tentative Ruling: A court, after notice and an opportunity for a hearing, may impose terminating, issue, or evidentiary sanctions for misuse of the discovery process. (CCP § 2023.030.) Terminating sanctions results in the striking of a pleading or parts of the pleading; an order staying further proceedings until the discovery order has been obeyed; order dismissing an action; or an order rendering judgment by default against the drafting party. (*Id.* at (d).) “An issue sanction is an order that designated facts are deemed established in favor of the party adversely affected by the misuse of the discovery process, or an order prohibiting the sanctioned party from supporting or opposing designated claims or defenses. An evidence sanction is an order prohibiting designated matters from being introduced in evidence. (*New Albertson, Inc. v. Superior Court* (2008) 168 Cal.App.4th 1403, 1422.)

Typically, terminating, issue, and evidentiary sanctions under CCP § 2023.030 only occur when there has been a violation of a court order. “Section 2023.030 authorizes a court to impose the specified types of sanctions, ‘[t]o the extent authorized by the chapter governing any particular discovery method or any other provision of this title.’ This means that the statutes governing the particular discovery methods limit the permissible sanctions to those sanctions provided under the applicable governing statutes.” (*New Albertsons, Inc., supra*, 168 Cal.App.4th at 1422.) The Discovery Act statutes “state that

the court may impose an issue, evidence, or terminating sanction, however, only if a party fails to obey a court order compelling discovery.” (*Id.* at 1423.) “The statutory requirement that there must be a failure to obey an order compelling discovery before the court may impose a nonmonetary sanction for misuse of the discovery process provides some assurance that such a potentially severe sanction will be reserved for those circumstances where the party’s discovery obligation is clear and the failure to comply with that obligation is clearly apparent.” (*Id.*)

Some courts “have held that nonmonetary sanctions of misuse of the discovery process may be imposed in certain circumstances not involving the sanctioned party’s failure to obey an order compelling discovery.” (*New Albertsons, Inc., supra*, 168 Cal.App.4th at 1424.) The general rule is “if it is sufficiently egregious, misconduct committed in connection with the failure to produce evidence in discovery may justify the imposition of nonmonetary sanctions even absent a prior order compelling discovery, or its equivalent. Furthermore, a prior order may not be necessary where it is reasonably clear that obtaining such an order would be futile.” (*Id.* at 1426.)

Discovery sanctions are issued to remedy discovery abuse, not to punish the offending party. (*Williams v. Russ* (2008) 167 Cal.App.4th 1215, 1223.) The sanctions should be proportionate to the offending party’s misconduct. (*Id.*) “[W]here a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanctions.” (*Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 279-280.) Typically, less severe sanctions (like monetary sanctions) are awarded first, before escalating to evidentiary, issue, or terminating sanctions. It is not improper for a court to preclude a party from producing at trial the evidence they repeatedly refused to produce during discovery. (*Juarez v. Boy Scouts of America, Inc.* (2000) 81 Cal.App.4th 377, 389.) “Absent some unusual extenuating circumstances not present here, the appropriate sanctions when a party repeatedly and willfully fails to provide certain evidence to the opposing party as required by the discovery rules is preclusion of that evidence from the trial – even if such a sanction proves determinative in terminating plaintiff’s case.” (*Id.*)

In order to seek issue and evidentiary sanctions, the moving party is required to file a separate statement setting forth the issue and/or evidence at issue. (California Rules of Court, rule 3.1345(a)(7).) This requirement has not been complied with. As such, the requests for issue and evidentiary sanctions is denied.

The motion is denied as to the request for terminating and monetary sanctions. While Plaintiff accuses Chapman of failing to withdrawal subpoenas that he represented to Plaintiff and the Court that had been withdrawn, the entity that appears to be responsible for the issues experienced by the parties is the third-party vendor used for the subpoenas - Ontellus. The subpoenas at issue are nos. 2915000, 2953990, and 2952803. The parties met and conferred extensively to limit the scope of these subpoenas and agreed to amend the subpoenas to comply with the new limited scope reached on June 3, 2026. (Charmaine V. Jackson’s Declaration, ¶¶ 4-14.) Based on an email from Ronnee Hilton from Ontellus, they received a request to amend the subpoenas based on the terms agreed to by the parties on 6.03.26. (Exhibit 18 to Charmaine V. Jackson’s Declaration.) Ontellus represented that the subpoenas at issue were withdrawn and amended on 6.05.26. (*Id.*) Plaintiff’s counsel asserted that these newly issued subpoenas were defective. (*Id.*) The parties went back and forth regarding defects in subpoenas drafted by Ontellus. (Exhibit 23, 27, 28, 29, and 30 of Charmaine V. Jackson’s

Declaration.) However, on 7.14.26 documents from the original subpoena were provided. (Exhibit 30 to Charmaine V. Jackson's Declaration.) It appears that Ontellus contends that the records were processed before the amendment. (Exhibit 30, Electronic Page 223-232 to Charmaine V. Jackson's Declaration.) Back on May 22, 2026, Ontellus represented that documents had been placed on hold and no records sought in the subpoenas would be produced. (Exhibit 26, Electronic Page, 207 of Charmaine V. Jackson's Declaration.) These documents were still produced. The production of the documents at issue do not appear to be Chapman or his counsel's fault.

Chapman's counsel has agreed to destroy the billing record that does not fit the scope of the agreed upon subpoena limits. (Declaration of Charmaine V. Jackson, 23:25-28; 24:1-13.) Counsel contends the remaining documents fit within the agreed upon scope of the subpoenas. (*Id.*) She provided a summary of these documents to Plaintiffs' counsel. Plaintiffs are not satisfied with the accounting of records provided by Chapman. Plaintiffs have not sought to obtain a copy of the documents obtained by Chapman from either Chapman's counsel or Ontellus. Due to this failure, there is no evidence that Chapman's counsel did not provide a full accounting.

Plaintiff's Motion for Terminating Sanctions, or in the Alternative, Issue and Evidentiary Sanctions, and Request for Monetary Sanctions DENIED.

Counsel for Defendant Chapman ordered to destroy all received documents that do not fit within the scope of the agreed upon subpoena limits.

8.

CASE #	CASE NAME	HEARING NAME
CVPS2603305	TAFOLLA VS DAP HEALTH, INC.	MOTION TO BE RELIEVED AS COUNSEL FOR DAP HEALTH, INC.

Tentative Ruling:

Motion to be Relieved as Counsel for Plaintiff Gabriela Tafolla GRANTED as to attorney Anna Coughlin. Attorney is relieved effective upon the filing of the proof of service of the signed order upon the client. Attorney Coughlin directed to submit an updated proposed order, MC-053, with sections 3 and 5-9 filled out for the court to sign. File with the court no later than 9.18.26.

A status hearing re representation for Plaintiff Gabriela Tafolla is set for 11.10.26.

Status hearing re arbitration remains set for 12.14.26.